

Court No. - 1

Case :- WRIT - C No. - 1758 of 2020

Petitioner :- Sanjay Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Kunwar Mayank Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Kunwar Mayank Singh, learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for respondent Power Corporation and perused the record.

Learned counsel for the petitioner has come up before this Court disputing the bill, which is in question.

Sri Mahboob Ahmad, learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

In view of the above, we **dispose of** the writ petition with liberty to the petitioner that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed bill within ten days from today along with certified copy of this order, the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

(Ajit Kumar,J.)

(Ramesh Sinha, J.)

Order Date :- 18.1.2020

Gaurav